

County Clerk (21)

The County Clerk is the oldest elected office in Westchester County, having been established in 1683. For over 300 years, the County Clerk has served the people of our County by maintaining and preserving the official documents and records of its rich history. The Westchester County Clerk is the Registrar of County land transactions and liens, as well as the Clerk of the Supreme and County courts. The position is both a County Official and a New York State Constitutional Officer. The department is required to operate under the following state and federal laws, codes, rules and regulations:

Programs and Services

County Clerk

State Law or Regulations

NYS County Law, Article 12, Section 525 et seq. and Article 8, Section 400

Business Certificates

NYS General Business Law, Article 9-B, Section 130

Clerk of Supreme & County Courts

NYS County Law, Article 12, Section 525

Commissioner of Deeds

NYS Executive Law, Article 6, Section 139

Deputy County Clerk

NYS County Law, Article 12, Section 526

Land Records Register

NYS Real Property Law, Article 9, Sections 290, 291, 294 and 294-B

Naturalizations

8 U.S.C. Section 1421 (US Immigration and Naturalization Act, Section 310)

Notaries Public

NYS Executive Law, Article 16, Sections 130 - 134

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Programs and Services

State Law or Regulations

Passports

22 C.F.R. 51.21 (b)(3)

Pistol Permits

NYS Penal Law, Section 400 (5)

Poor Persons

NYS Law, Civil Practice Law And Rules, Article 11, Section 1101

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PROGRAM AREA AND SERVICES:

GENERAL GOVERNMENT SUPPORT

- ✓ Serves as the registrar of County land transactions, recording and preserving documents such as deeds, mortgages, assignments and satisfactions.
- ✓ Serves as the Clerk of the Supreme and County Courts accepting and maintaining filings in these courts.
- ✓ Performs non-court related County legal functions including, but not limited to, registering a business, filing a lien, registering a domestic partnership, filing Military discharge papers, and accepting Small Claims Assessment Review petitions.
- ✓ Hosts naturalization ceremonies on a monthly basis and administers the Oath of Allegiance to newly naturalized United States citizens.
- ✓ Maintains pistol license applications and supports the Justices and Judges of the Supreme and County Courts respectively in their role as licensing officers pursuant to New York State Law.
- ✓ Issues Personal Identification Cards to Westchester County residents.
- ✓ Serves as agent of the Federal government to accept United States passport applications.
- ✓ Allows free public access to land and legal documents at the White Plains Office.
- ✓ Collects fees for the filing of land and legal records.
- ✓ Processes New York State Mortgage Tax, New York State Transfer Gains Tax, Federal Tax Liens and Uniform Commercial Code filings.

ONGOING DEPARTMENT INITIATIVES AND UPDATES:

- ✓ **Renovation of Office Space:** The renovation of the thirty-two thousand (32,000) square feet of office space previously occupied by the Clerk's office is near completion. With the automation of department functions and the resultant reduction in staffing needs, space has been opened up for adaptive reuse by the County Public Safety department and the Westchester County District Attorney. The renovation not only generates a savings in rental costs incurred by

other County departments, it also enhances the efficiency and the environment for an improved staff and visitor experience.

- ✓ **Continuation of COVID-19 Initiatives:** In 2020, the County Clerk's office developed a plan for the safety of the staff and the general public pursuant to the State and County COVID-19 guidelines. Changes were made to the Office physical layout to allow for recommended distancing between staff and the public at the counter; Plexiglass shields were installed at all public counters; and a locked drop box has been placed in the courthouse lobby for document delivery other than USPS, FedEx, and UPS. These initiatives have been incorporated in the renovation plans to ensure continued office preparedness.
- ✓ **Community Outreach:** The County Clerk's office has been running a very successful Community Outreach program featuring a custom-built truck throughout Westchester since 2002. The mobile office stops in every town and city in the County from April through November. The mobile office staff includes passport agents to accept applications, answer questions about passport applications and renewals, and take passport photos. There has been a substantial increase in the number of passport applications submitted through the mobile and physical offices. In 2023, 6,285 passport applications were processed. For the 7-month period of January through July 2024, 3,843 applications were processed with 7% of those applications being processed through the mobile office. In an effort to continue to meet the demand, mobile office services have been extended to include notary, veterans, and business licensing services, and access has been expanded to include evening and weekend hours.
- ✓ **Westchester County Personal Identification Card Expansion:** The number of Westchester County Identification cards issued rose from 807 in 2022 to 1,493 in 2023, and 723 for the period of January 1 to July 31, 2024. These ID cards have opened doors to benefits by providing an option to Westchester residents who, due to citizenship status, poverty, or other circumstances, cannot obtain state-issued photo IDs. Obtaining "a certified copy of a birth certificate" as previously required by the Laws of Westchester County Section 265.181(2) had been a major obstacle in qualifying for the ID card. Accordingly, this Office proposed an amendment to permit other proofs of birth and identity in lieu of or in addition to the birth

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certificate. In March 2022, the amendment was adopted by the Board of Legislators and approved by the County Executive. To further assist in providing this service, the application and guidelines to obtain a County Identification Card have been translated into the following languages: Spanish, Haitian Creole, Portuguese (Brazil), Portuguese (Portugal), Italian, Chinese - simplified, French, Arabic, Tagalog, Japanese, and Albanian. Additional language assistance continues to be available through an outside vendor when needed.

- ✓ **Language Assistance Services:** In 2017, the County Clerk installed the Google Translate module to enable the translation of the text of the County Clerk's website in over 100 languages. Language assistance is provided by the New York State Court system in the provision of services by the County Clerk in his capacity as the clerk of the Supreme and County courts. In furtherance of the County Clerk's commitment to providing services to individuals of limited English proficiency, the County Clerk expanded the language assistance services to include interpretation services to meet the needs of individuals utilizing the County Clerk's non-court related services. Language assistance services are available on and off site.
- ✓ **Website Design:** In conjunction with the County IT department, the County Clerk's website was re-designed to comply with the ADA and Web Content Accessibility Guidelines (WCAG) standards. The re-design has improved the accessibility and ease in navigation of the website. While the pages of the site can be accessed in many languages through the Google Translate tool provided at the top of each page, this office is exploring a means of similarly translating pdf forms in other languages instantaneously. Assistive technology tools are continuously being explored to further improve the website and its content.
- ✓ **Technological Advances:** The County Clerk continues to be a leader in capturing the benefits that technology has to offer.
 - **Digitization of Records in All Divisions:** As the Clerk of the Supreme and County Courts, the County Clerk is required to retain court records for the full retention period required by law that can range from a few years to permanent retention. The County Clerk has worked in conjunction with the Office of Court Administration to develop a program that allows the Clerk's Office to designate a scanned image of a court record

as the official copy of the document for records retention purposes. The County Clerk also maintains legal bound books, oaths of office of notaries and commissioners of deeds which have also been digitized with the funding of a \$47,600 grant through the State Local Government Records Management Improvement Fund. The County Clerk continues to digitize non-Court related documents; however, without designation of the digitized documents as official documents, paper copies have been retained. To increase the accessibility of the documents and reduce the need for storage, the County Clerk submitted a proposal permitting digitally created or converted records to be designated as the official records. In 2023, this proposal was passed by the Board of Legislators and approved by the County Executive. This designation provides the County with additional space at the Records Center and relief from the environmental conditions such as temperature, humidity and flooding that pose a threat to the integrity of the records. Designation of the digitized records as official records also promotes the economical operation of the government in ensuring accessibility to the documents, promoting efficiency and productivity in finding and sharing the documents and paper reduction. Non-digital records that are copies of digital records as convenience copies can now be disposed of when no longer needed for reference or other administrative purposes.

✓ **Land Records Division**

- Documents such as deeds and mortgages can be recorded and paid for electronically, allowing interests to be secured more quickly and efficiently. The Clerk's voluntary eRecording program, the first in the State of New York, has been a tremendous success in Westchester County, shortening recording times from months to hours. Errors are corrected more quickly, often on the same day. Document control is improved as original documents are retained by the submitter and cannot be lost or misplaced during transit to and from a recording office. Customers who choose to electronically record no longer pay the cost of postage, overnight mail or courier charges. The County Clerk's Office has eliminated the

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cost of mailing back rejected and recorded documents, as well as the costs associated with scanning documents.

- The County Clerk is working with the IT staff to improve the recording services. Changes are proposed to permit the entry of the reason a satisfaction does not discharge a mortgage in the County Clerk's Westchester Records Online (WRO) and Property Records Electronic Portal (PREP) system. The law mandates the recording of a satisfaction of mortgage as long as the document is in recordable form. When a satisfaction meets the statutory requirements to discharge a mortgage, the County Clerk must record the satisfaction and note the mortgage as discharged. When the satisfaction is in recordable form but does not meet the statutory requirements to discharge a mortgage, the satisfaction must still be recorded. To eliminate any confusion as to the status of the mortgage, the County Clerk is working with IT staff to permit the notation of the nondischarge and the entry of the reason for the notation in WRO and the PREP system.
- Two major 2024 legislative enactments - the "Transfer on Death" deed and the NYS Judicial Security Act - have been and continue to be addressed by the County Clerk in conjunction with IT staff. The Transfer on Death deed is a non-probate method of conveying real property. It is a revocable deed used to hold real property that automatically transfers ownership to the identified beneficiary upon the death of the transferor. Staff has been trained in reviewing the Transfer on Death deed to meet recordability requirements and a category for the submission review and recording of the deed has been added to the County's Property Records Electronic Portal (PREP) system.
- Under the NYS Judicial Security Act, current and retired judges, spouses and former spouses, parents, children and siblings can request that certain personal information be removed from public access. Restricted personal information such as home addresses, primary and secondary residences, marital status and identity of any present and former spouse, may be contained in recorded and/or filed documents. Upon request, documents containing the personal information must be removed from public access and placed in a newly

established "Restricted Documents" category prohibiting public access.

- The Tax Commission Executive Director, County IT department, and the County Clerk are partnering with municipal assessors to provide improved integration of municipal tax data in the Clerk's PREP system as a shared service. Up-to-date assessment data shared by local municipal tax assessors would automatically appear on real property transfer reports being prepared to support property transfers. The local municipality will benefit as the data they receive will be more accurate, facilitating their ability to pull data directly into their system. This integration will increase efficiency and accuracy of data on the real property transfer reports prepared when recording land transfers. The County Clerk, in conjunction with the County IT staff, is actively working with the Town of Greenburgh to set up this shared service.

✓ Legal Division

- Through the New York State Courts Electronic Filing (NYSCEF) system, the Clerk's Office processes filings and transmits the documents to partners in the New York State Supreme Court. The mandatory e-filing of civil cases in the Clerk's Legal Division significantly reduced manual labor while increasing the efficiency in the filing process. Reduction in paper filings has been realized with the authorization of e-filing of election law cases and special proceedings under the Mental Hygiene Law. Further reduction has been realized with the authorization of e-filing of name change applications.
- As co-chair of the New York State Association of County Clerks' Court Committee, member of the its legislative committee, and first ever Chair of the Supreme Court Steering Committee for Supreme Court E-filing, the County Clerk remains committed to advancing e-filing throughout the State. The committees coordinate responses from the county clerks and legal community leaders and make recommendations to the Chief Administrative Judge of the State of New York including the creation or expansion of mandatory electronic filing programs in counties stretching across New York State.

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Working with dedicated and diverse legal community leaders has enhanced the ability of the County Clerk's Office to serve both pro se litigants and attorneys. The committees' initiatives have resulted in 61 of the 62 counties in New York State now providing e-filing.

- The County Clerk's office, in conjunction with the County IT staff, has been working with an IT professional consultant company to proceed with the capital project of integrating legal division programs and applications, including digitizing processes and the cashing system. Advancing information technology capabilities will result in better services, less cost in personnel, and environmental benefits of less commuting to White Plains and paper wasted.
- In 2023, the State enacted amendments to the Executive Law whereby renewals of the commissions of notaries, as well as initial commissions, are processed by the State. Applications for initial and renewal commissions are now available online through the State's portal. In turn, the State forwards the approved commissions by email to a designated mailbox in the County Clerk's Office. The County Clerk's staff immediately downloads the commission and inputs the data into the County Clerk's database permitting accessibility to enable immediate authentication of a notary's signature.

✓ Licensing Division

- The County Clerk requested and received approval from the Court administration and from the U.S. Citizenship and Immigration Services to increase the number of candidates to 100 to be naturalized at its monthly session. For the period of January through July 2024, the County Clerk administered the oath of allegiance to 684 naturalized citizens.
- The Clerk's Pistol Licensing system has been upgraded to permit the import of data initially entered by the County Police into its IMPACT data management system to the Clerk's system, eliminating duplicative data entry. To expand upon the digital processing of pistol licenses, the County Clerk staff is working with the County IT staff in testing image display and scanning pistol licenses to be electronically submitted to the Court justices and judges as licensing officers. It is estimated

this will vastly improve the licensing process and reduce costs associated with handling of hard-copy documents.

- Upon the issuance and renewals of handgun licenses, the County Clerk has and continues to provide a warning notice of the licensee's obligations for responsible firearm storage in compliance with the Laws of Westchester County section 527.61(2) and New York State Penal Law 400.00(18). The County Clerk also provides the notices warning of the dangers of weapons and firearms to dealer licensees in accordance with the 2022 enactment of Section 529.21(b) of the Laws of Westchester.
- In June 2022, the United State Supreme Court struck down that portion of the New York State firearm licensing law requiring the showing of "proper cause" or special need by anyone seeking a license to carry a concealed handgun outside of the home. To address the consequences of the ruling, New York State enacted revisions to its firearm licensing laws, effective September 1, 2022. As a result of the Supreme Court decision, which will vastly increase the number of pistols legally on the street, and the revisions to New York licensing laws, there had been a significant increase in initial applications for full carry concealed licenses and applications to amend and delete restrictions on current licenses. The number of amendment applications doubled in 2022 to 6,181. As a significant number of the approved amendment applications in 2022 resulted in full carry concealed licenses with a 3-year term, the Office anticipates a significant increase in recertifications in 2025.

- ✓ **Access to Westchester Records Online ("WRO"):** The County Board of Acquisition and Contract has authorized the County Clerk to enter into no cost license agreements with local municipalities, on an as needed basis, for remote access to the County Clerk's Land and Legal Public Viewer, officially known as WRO. In an effort to assist the municipalities in meeting the needs of their constituents and in preventing neighborhood blight, the municipalities now have remote online access to weekly foreclosure reports in the WRO. These reports contain data from recently commenced actions including the mortgagor, mortgagee, property location, and a reference to the pending court action. Further examination of pending court cases can

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then be conducted either via the online search feature of the County Clerk website or by visiting the County Clerk's office.

- ✓ **Foreclosure Data Captured and Shared to Assist Homeowners in Need:** The Office of the Westchester County Clerk continues to capture information from foreclosure cases to provide Westchester County residents with the data needed to secure funds to assist persons impacted by the foreclosure crisis. There has been an increase in the number of new foreclosure filings from 503 in 2022 to 869 in 2023. There have been 457 filings for the 7-month period of January through July 2024. In 2022, 270 foreclosure judgments were entered while 223 were entered in 2023. For the 7-month period of January through July 2024, 167 judgments have been entered.
- ✓ **Notice of Conveyance of Residential Real Property:** Due to the rise in real estate and mortgage fraud, NYS Real Property Law Section 291 was amended in March 2020, requiring the County Clerk, upon the recording of a conveyance of residential real property, to mail a notice of any such conveyance to the owner of record. The intent is to prevent others from posing as new owners of a home with the ability to obtain a home equity line of credit. The County Clerk has alerted the public to this law and continues to mail notices to the record owners of the real property with details of the recording of any such conveyance. To date, the County Clerk's Office has not been notified by recipients of the notice of any fraudulent conduct.
- ✓ **Redefining Office Organizational Behavior:** County Clerk's Office management personnel are constantly reviewing departmental policies and rules, as well as union contracts to increase operational efficiency and effectiveness. Policies on usage of sick leave, personal and vacation leaves, as well as lateness have all been reviewed reducing excessive usage and creating a more professional and respectful workplace.
- ✓ **Responses to Legal Claims:** The office is frequently named in lawsuits in which the plaintiff or petitioner needs a court order to remedy a land title issue, such as a break in the chain of title, a lost assignment of a mortgage, a discharge of mortgage that should be vacated or recorded. This Office has established a working relationship with counsel resulting in the discontinuance of the

actions against this Office. The results over the past year have been a savings in the tens of thousands of dollars.

- ✓ **Smart Budgeting Contributes to Reduction in County Tax Levy:** The Office of the Westchester County Clerk continues to collect revenues in excess of expenses due to continuing efforts to reduce the operating cost of the office. Since 2006, overall staffing has been reduced by approximately forty-five percent (45%). The cumulative negative tax levy savings from the department has reached approximately \$47 million over the past 18 years.

REVENUES:

- ✓ Federal and State laws establish fees for the processing of various land, legal and licensing documents. The County Clerk's Office receives no fee, a portion of the fee, or the entire fee depending on the nature of the document processed.
- ✓ Other revenue sources include proceeds from copying machines, sale of licenses for Internet access to records, passport photos, searches and copies.

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SERVICE INDICATORS:

	2023 Actual	2024 Estimated	2025 Planned
Land Records			
Deed Papers	15,985	15,000	15,500
Mortgage Papers	17,294	17,000	17,500
Satisfactions	11,795	12,000	12,500
License			
Passport	6,285	6,500	6,700
Pistol Licenses	12,493	7,000	12,500
ID Cards	1,493	1,200	1,300
Legal			
Index Numbers	17,833	19,500	19,500
Certified Papers	13,958	15,500	15,750
Notary Public	15,862	16,500	17,000
Business Certifications	1,232	1,225	1,250

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Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Personal Service:							
Annual-Regular:							
Management (0305)							
County Clerk		1	1	1	1	1	1
Assistant to County Clerk	XVII	1	1	1	1	1	1
Conf. Secretary to County Clerk	XI	1	1	1	1	1	1
		3	3	3	3	3	3
Finance and Administration (0310)							
Asst. Director Admin. Services	XII		1	1	1		
Program Adm. (Co. Clerk Operations)	XII	1	1	1	1	1	1
Application Support Administrator	XII					1	1
Accountant I	VIII	1	1	1	1	1	1
Supervising Cashier	VII	1	1	1	1	1	1
Sr. Clerk-County Clerk	VI	1					
Sr. Messenger	IV	1	2	2	2	2	2
Messenger	III	1	1	1	1	1	1
		6	7	7	7	7	7
Land Records (0320)							
Program Coordinator (Land Records)	XIII	1	1	1	1	1	1
Mortgage Tax Deputy	X	1	1	1	1	1	1
Asst. Deputy Co. Clerk (Legal & Land)	X	1	1	1	1	1	1
Staff Asst. (County Clerk)	VIII	4	2	2	2	2	2
Staff Asst. (Records Manager)	VIII		1	1	1	1	1
Mortgage Tax Cashier	VII	3	3	3	3	3	3
Sr. Clerk-County Clerk (SP SPKG)	VI	1					
Sr. Clerk-County Clerk	VI	8	7	7	7	7	7
		19	16	16	16	16	16
Licensing Division (0330)							
Executive Deputy County Clerk	XV	1	1	1	1	1	1
Second Deputy County Clerk (Nat.)	XII	1	1	1	1	1	1
Staff Asst.	VIII	2	2	2	2	1	1

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Objects of Expenditure		Expended 2023	Adopted 2024	Appropriated 2024	Projected 2024	Requested 2025	Allowed 2025
Staff Asst-County Clerk (SP SPKG)	VIII					1	1
Sr. Clerk -County Clerk	VI	2	4	4	4	4	4
Sr. Clerk -County Clerk (SP SPKG)	VI	1	2	2	2	1	1
Sr. Messenger	IV	1					
		8	10	10	10	9	9
Legal Division (0340)							
Deputy County Clerk (Gen.)	XIV	1	1	1	1	1	1
Program Coordinator	XIII	1	1	1	1	1	1
Program Adm. (E-Filing)	XII	1	1	1	1	1	1
Support Svcs Supervisor-County Clerk	X	1					
Asst. Deputy Co. Clerk (Legal & Land)	X	1	1	1	1	1	1
Staff Asst.	VIII	4	4	4	4	4	4
Staff Asst (Records Manager)	VIII		1	1	1	1	1
Sr. Records Clerk	VI	1	1	1	1	1	1
Sr. Clerk - County Clerk	VI	11	11	11	11	10	10
Sr. Clerk - County Clerk (SP SPKG)	VI	2	2	2	2	3	3
Clerk-County Clerk	IV	1	1	1	1	1	1
		24	24	24	24	24	24
Computer Processing Division (0350)							
Sr. Clerk-County Clerk	VI	1					
		1	0	0	0	0	0
Community Education (0360)							
Program Adm. (Comm. Education)	XII	1	1	1	1	1	1
		1	1	1	1	1	1
Total Positions		62	61	61	61	60	60